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File No.: EXP202310203

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant party 1), B.B.B. (hereinafter, the claimant party 2), C.C.C. (hereinafter, the claimant party 3), D.D.D. (hereinafter, the claimant party 4), E.E.E. (hereinafter, the claimant party 5), F.F.F. (hereinafter, the claimant party 6), G.G.G. (hereinafter, the claimant party 7), H.H.H. (hereinafter, the claimant party 8), I.I.I.I (hereinafter, the claimant party 9), and J.J.J. (hereinafter, the claimant party 10) filed a complaint with the Spanish Agency for Data Protection on June 29, 2023. The complaint is directed against ***COMMUNITY OF PROPERTY OWNERS L.L.L. with NIF ***NIF.1 (hereinafter, the respondent party). The reasons for the complaint are as follows: The claimant parties state that on March 7, 2023, a list of debtor co-owners was published on the (locked) notice board in the building's lobby, visible to anyone passing by, where they are identified by apartment number. There is another (locked) notice board in the aforementioned lobby, where a record of the meeting dated March 7, 2018, is displayed, which contains a nominal list of the owners present, allowing for the identification of the debtors.

They also indicate that the respondent party has sent lists of debtors by email to the co-owners on several occasions, with errors in the data and without justification for their sending.

Along with the complaint, the following documentation is provided, among others:

- Communication dated March 31, 2023, from the Community administration, sent by email, attaching a list of community debtors.
- Photo of the nominal list and by apartment number published on a notice board (corresponds to a record of the Ordinary General Meeting of property owners of the community dated March 7, 2018).
- Photo of the list published on another notice board, which contains a list of unpaid debts with the apartment number of the community in question.
- Email dated April 3, 2023, for rectification of the list of unpaid debts published on March 31, 2023 (updated list of unpaid debts).
- Email dated April 5 for rectification, explaining that due to a computer error, not all payments had been accounted for (new updated list of unpaid debts).

In this regard, the claimant parties indicate that the publication of the list of debtors on the notice board would have occurred outside the provisions set forth in Articles 16.2 and 21.3 of Law 49/1960, of July 21, on horizontal property. Furthermore, to give greater dissemination to the aforementioned list of debtors, it was published on the notice board of the Community of Property Owners on March 7, 2023. They also assert that although the list attached to the communication of March 31, 2023, and published on the notice board on March 7, 2023, includes the number of each apartment (it is not nominal), with this data, the owners could easily identify the alleged debtors, with the help of the minutes of previous general meetings and the information displayed on nearby notice boards. The list of alleged debtors would be publicly displayed, also to individuals outside the community, as the notice board in question is located in the building's lobby, visible to everyone, where there is "intense traffic of hundreds of tourists who stay weekly in the tourist apartments (there are about 115 tourist apartments with high occupancy)." Thus, they assert, anyone could ascertain the identity of the alleged debtor by checking the name of the owner of each apartment number in the minutes displayed on the other notice board.

SECOND: The claimant parties submitted an "extension of the complaint" to this Agency on July 5, 2023. The reasons for the extension are as follows, as explained by the claimant parties:

"FIRST FACT OF THE EXTENSION The aforementioned Community of Property Owners convened an extraordinary general meeting on May 22 via email (DOCUMENT 11), to be held on June 1. This call was accompanied by a list of alleged unpaid debts as of May 22, 2023 (on the last page of this document). The minutes of this general meeting were sent to the owners on June 23 by email (DOCUMENT 12). On pages 8 to 17, a list of the building's owners is included, identifying their

property (apartment number, parking space number, etc.) and the name and surname of each owner. This allows all owners to easily, directly, and unequivocally establish a relationship between both data (alleged delinquency of the apartments, with the personal data of the owners of each apartment). As stated in point 2 of the complaint now being extended, the repeated sending of lists of unpaid debts allowed for nominal identification, and this is favored by the repeated sending to the owners of different lists of alleged unpaid debts (many of which are erroneous). To further substantiate and consolidate the argument, the aforementioned minutes (DOCUMENT 12), sent shortly after the irregular publication of the list of unpaid debts, allows in any case to establish that unequivocal relationship between the property listed and its owner.

C/ Jorge Juan, 6
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28001 – Madrid
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3/16

SECOND FACT OF THE EXPANSION On July 4th, the Administrator sent an email to all owners with a communication regarding "various matters," which includes a new list of alleged debtors (DOCUMENT 13). Again, and as stated in the previous fact, although each allegedly indebted owner is identified by their apartment or garage number, it is possible to easily, directly, and unequivocally establish, by name, who the owner of each property is, since just over a week prior, a record had been circulated to all owners linking such properties with their owners. This communication REITERATES ONCE AGAIN the reported infringement regarding personal data protection, as it is carried out outside the provisions established in the Horizontal Property Law, that is to say, without there being at that moment, as of July 4, 2023, (1) any call for a general meeting nor (2) the slightest attempt at prior notification to each debtor in accordance with the provisions of said regulation (e.g., arts. 16.2 and 21.3 of the LPH). The Governing Board reiterates the irregularity noted in its community on March 31, 2023 (DOCUMENT 03) regarding the monthly publication of the list of debtors, something GRAVELY IRREGULAR, both due to the mere fact itself (since such publication is habitually carried out outside the permitted cases by the LPH) and due to its repetitive nature.

Along with this new document, the following documentation is provided:

- Email dated May 22, 2023, calling for an Extraordinary Meeting of the community on June 1, 2023, attaching a list of debtors.
- Email dated June 23, sending the minutes of the Extraordinary Meeting, attaching a list of attendees.
- Email dated July 4, 2023, sending a communication to owners, attaching a list of debtors.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), this complaint was forwarded to the party being complained about, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified on September 15, 2023, and September 29, 2023, respectively, to the Administration and Governing Board of the Community, as evidenced by the acknowledgments of receipt in the file. On October 27, 2023, a response was received in this Agency indicating, among other things, the following:

"[...] the AEPD has already stated on several occasions that there is no infringement of data protection regarding the insertion of a list of debtors on the notice board, but only mentioning the apartment or premises."

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28001 – Madrid
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4/16

It should be noted that the document published on the bulletin board is a table listing the apartments and garages that make up the Community. Therefore, the AEPD indicates that the aforementioned

document does not present information that is easily decipherable by someone outside of that community and that the owners of the residences are not identified.

Up to this point, the publication of the lists of delinquency is justified, without identifying the debtor individuals."

And regarding the introduction of the Minutes of the Ordinary General Meeting of the community of owners dated March 7, 2018, on the bulletin board, which includes the list of owners and the number of apartments, the responding party states the following:

"The community of owners, through its governing bodies or its administration, has never introduced such a list on the aforementioned bulletin board. That list has presumably been introduced artificially by the complainants, some of whom are precisely the ones who maintain the highest debts with the community.

Although the bulletin board is locked, it is possible to introduce papers through the gaps in the glass, and, coincidentally, as shown in the photographs provided by the complainants... the disposition of the 2018 minutes is coincidentally open and folded at the list of attending owners and horizontally, when the normal, reasonable, and logical thing, had it been exposed or published by the community, would be... to be in a vertical position and on the first page....

Furthermore, it makes no sense for the Minutes of 2018 to be displayed, as by the date when the complainants presumably took the photo, two more meetings had already been held in the community..."

FOURTH: On September 30, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant party was admitted for processing.

FIFTH: The complainant parties, on January 9, 2024, filed a second extension of the complaint with the Spanish Agency for Data Protection. The reasons on which the extension of the complaint is based are as follows, as explained by the complainant parties:

"From the allegations made in opposition to our original complaint and the first extension of its facts, it is clear that the opposing party either has not understood what the complaint is about, or knowing it, tries to divert attention. The communication and publication of lists of delinquents with the calls for general meetings, or the corresponding minutes of these meetings, is not being complained about. That is perfectly legal and nothing has ever been said to the contrary. What is being complained about is, precisely, the use of such lists outside of such legally defined and very specific cases.

The specific fact that the publication of the referred lists of 'delinquents' that we are currently addressing is not nominal (a publication that, in itself, is outside the legally provided cases for this purpose) is entirely irrelevant. As we explained in our complaint and now reiterate in light of the new..."

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28001 – Madrid

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5/16

communication that has been made otherwise, reiterating the error, the possibility and ease that any owner of Eurobuilding 2 has to relate names and surnames of owners with the numbers of their corresponding apartments and/or parking spaces is immediate, undeniable, and evident.

On November 20, 2023, the building Administrator proceeded to circulate via email to all owners a list of debtors (DOCUMENT 14, NEW DOCUMENT, last page) attached to a circular from the Board of Government...

As in previous occasions, the list included in that last communication of November 20 contains the amount of the alleged debts along with the apartment or parking space number. It is not nominal, but this data is sufficient to easily identify the "alleged" debtors, since the minutes of the Extraordinary General Meeting held on 01/06/2023 were sent by email to all owners, and it did include the equivalence between the number of each apartment or parking space and the identifying data of their respective owners...

Regarding the THIRD fact of the complaint, concerning the PUBLIC exposure of the personal data of the affected parties, also TO PERSONS UNRELATED TO THE COMMUNITY, let us remember that

this was displayed on two notice boards in the lobby of the building, thus violating the provisions set forth in articles 16.2 and 9.2 of the L.P.H.: that is, there was neither a call for a general meeting of owners, nor had there been a failure in the attempt to notify the owners of their alleged situation of delinquency.

That is to say, in the case of the publication of the data of the debtors on the notice board, this could ONLY be carried out when it had not been possible to deliver the notice of the call in legal form. And to proceed in this manner, the attempts at notification must be evidenced, which is impossible because such individual prior notices were never carried out.

Well, now, the accused, with the intention of denying their actions, gratuitously and without any basis accuse the complainants of having inserted a nominal list of owners in one of the two notice boards through the gap.

This accusation is completely FALSE, we reject it in full, emphatically, and vigorously, and moreover, it collapses under its own weight. So much so that, if one observes the photograph of the notice board (DOCUMENT 05 of the complaint), it will be seen that, if such an insertion were made using the gap of the board, it would fall to the right of it, but never, never (because it would be materially impossible) at its left end...

Along with the expansion of the claim, the following documentation is provided, among others:

- Email dated 20/11/2023 in which the periodic management report and a new list of debtors with the apartment number and the debt are sent.
- Photos of the notice boards with the disseminated documents.

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6/16

SIXTH

: On March 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the accused party for the alleged infringement of Article 5.1.f) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), classified under Article 83.5 of the GDPR.

SEVENTH: On April 8, 2024, this Agency received, in due time and form, a written submission from the accused party in which they presented allegations against the initiation agreement. In these allegations, in summary, they stated that:

“FIRST: Violation of the Principle of Individuality of Sanctions and consequent infringement of Article 25 of the Spanish Constitution.

It is, at the very least, contradictory (if not entirely erroneous) and confusing that articles of the Horizontal Property Law (LPH) related to the convening of a meeting are cited, and it is stated that it was through this convening and the publication of the list of delinquent owners on the Community's notice board and the repeated sending by email of lists of defaulters, that this party has violated the principle of confidentiality in the processing of personal data.

The behaviors that the complainants (many of whom do not live in the building nor are harmed in any way by the facts they falsely report, and one, such as J.J.J., who is not even an owner) highlight can be summarized into two groups: On one hand, it is stated that on one of the two notice boards of the Community that exist in the lobby, on March 7, 2023, a list of debtors was published identifying them by apartment number, which is absolutely false, since as this party has already had the opportunity to indicate, the document in question does not display information that can be easily deciphered by a person outside the community, NOT IDENTIFYING the owners of the properties; that is to say, it indicates the apartment or commercial unit and the situation of delinquency and the amount, which in the case of the building is very high (almost 10% of the annual budget) and that is the reason that has compelled the Board of Directors of the Community to act in this manner.

Therefore, said publication does not constitute the infringement attributed to the Community, since the communication of data relating to persons is permitted as it is not provided for as such in the

Horizontal Property Law, inserting data without one of the objectives provided for in Articles 9, 15, and 16 of the LPH. The fact that the list of defaulters of the Community is published on the notice board is to ensure compliance with the notification requirement that the LPH demands for the validity of the convocations, which in that case was made for an Extraordinary Meeting of the Community, since there are more than 340 owners that make it up, and some of them have provided email addresses for notification purposes that were rejected, making such publication necessary (there was no record of their receipt), without it being required to state the reasons for the publication, as the LPH does not demand it. We insist, therefore, that the document published on the notice board is a table listing the apartments and garages that have debts with the Community. For this reason, the aforementioned document does not display information that can be easily deciphered by a person outside that Community since the owners of the properties are not identified.

C/ Jorge Juan, 6

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28001 – Madrid

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7/16

housing and therefore there has been no violation of the regulations regarding data protection, so it is appropriate at this point to archive the present procedure.

SECOND. - Violation of Article 24 of the Spanish Constitution due to infringement of the guarantees established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations.

The extension to the scope of administrative sanctions of the fundamental right to the presumption of innocence - Article 24, paragraph 2, of the Constitution - was declared by the Constitutional Court in, among others, Judgments numbers 13/1982, 36/1985, and 76/1990.

The previous doctrine is applicable to the present case since there are, in the opinion of this party, serious procedural defects observed in the Administrative File, as we have seen, due to the lack of specific attribution of the true infringing subject, there is no possibility of attributing any responsibility to my represented party, as their direct participation in the events has not been proven, since the data recorded in the initiation file of the present sanctioning procedure are not accurate.

And that is the reason why, with a clearly biased character, the diligence of the complainants is noted regarding their awareness of the presence of the minutes of the General Meeting of Owners from the year 2018 on the Community's notice board, which, we insist, is not true in the present case.

This defenselessness produced and the absence of evidence in the sanctioning administrative file due to the lack of veracity in the facts recorded in the complaints filed, must lead to the ARCHIVING of the same, since the procedural guarantees proclaimed in Article 24 of the Spanish Constitution require that the complaining Administration observe them, as it cannot be forgotten that we are in the presence of a sanctioning procedure, in which the principle of presumption of innocence must prevail, unless it is destroyed.

MEANS OF EVIDENCE

Testimonial, so that the Instructor of the Sanctioning File proceeds to summon the following persons at the domicile of my represented party:

1.- Mr. M.M.M., Administrative Secretary of the Community, holding D.N.I. ***NIF.2

2.- Ms. N.N.N., holding D.N.I. ***NIF.3

In the summons that is sent to the witnesses proposed by this party to clarify the facts attributed to my represented party, the day, time, and place where they must appear shall be indicated, and they may do so, if it is to their benefit, accompanied by a lawyer or person who advises them. Consequently, it is requested that the Instructor agree to all necessary measures for the practice of this evidence, which our represented party considers essential for the defense of their interests."

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EIGHTH: On 24/05/2024, and after the deadline for allegations granted in the initiation agreement of sanctioning procedure No. PS/00056/2024, it was agreed to open a period for the practice of evidence, as provided in Articles 77 and 78 of the LPACAP, in which it was agreed to consider reproduced for evidentiary purposes the notification of the breach that led to the present file and its documentation, the allegations to the initiation agreement of the referenced sanctioning procedure, submitted by ***COMMUNITY OF OWNERS L.L.L., and the documentation that accompanies them, as well as to carry out documentary evidence, requiring ***COMMUNITY OF OWNERS L.L.L. to submit, within a maximum period of TEN WORKING DAYS, responsible declarations from the two witnesses proposed in the allegations presented to the initiation agreement, informing of all matters they consider pertinent regarding the security breach that occurred, as well as any other information they consider relevant to the case.

It was also agreed to discard the testimonial evidence proposed by ***COMMUNITY OF OWNERS L.L.L. in their written allegations to the initiation agreement of the present procedure, consisting of summoning the two indicated witnesses, since with the responsible declarations they can express what is necessary to clarify the facts attributed.

The notification of the opening of the evidence period, which was carried out in accordance with the rules established in the LPACAP, was notified on 26/05/2024, as noted in the acknowledgment of receipt in the file.

NINTH: Once the deadline granted for documentary evidence has elapsed, it has been confirmed that no responsible declaration has been received from the claimed party.

TENTH: On July 24, 2024, a resolution proposal was made, proposing that the Director of the Spanish Agency for Data Protection sanction ***COMMUNITY OF OWNERS L.L.L., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, with a fine of €2,000. Although the receipt of the proposal is recorded in the file, no allegations have been received regarding it.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On 07/03/2023, the claimed party published a list of debtors on the notice board in the lobby of the community building, where they are identified by apartment number, according to the photos provided.

SECOND: On 31/03/2023, the claimed party sent a communication by email to the community members attaching a list of community debtors, according to a copy of the email provided.

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THIRD: On 3/04/2023, the respondent sent an email to rectify the list of unpaid debts sent on 31 March 2023. An updated list of unpaid debts is attached, according to the copy of the email provided.

FOURTH: On 5/04/2023, the respondent sent a new email for rectification explaining that due to a computer error, not all payments had been accounted for. An updated list of unpaid debts is attached, according to the copy of the email provided.

FIFTH: On 22/05/2023, the respondent sent an email to the community members convening an Extraordinary Meeting of the community on 1/06/2023, attaching a list of debtors, according to the copy of the email provided.

SIXTH: On 23/06/2023, the respondent sent an email to the community members attaching the minutes of the Extraordinary Meeting and a list of attendees, according to the copy of the email provided.

SEVENTH: On 4/07/2023, the respondent sent an email to the community members attaching a list of debtors, according to the copy of the email provided.

EIGHTH: On 20/11/2023, the respondent sent an email attaching the periodic management report and

a new list of debtors with the apartment number and the debt, according to the copy of the email provided.

NINTH: The emails have been sent from the email address ***EMAIL.1

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In this case, according to the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the respondent carries out, among other processes, the collection, registration, organization, dissemination, and conservation of, among others, the following personal data of individuals: name, identification number, location data, email address, and economic data in relation to the Community of property owners.

The respondent carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" (hereinafter, security breach) as "all breaches of security that lead to the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access to such data."

In this case, there is evidence of a personal data breach under the circumstances indicated above, categorized as a confidentiality breach, as lists of unpaid debts were sent by email to all community members and were visible on the community bulletin board without being one of the cases permitted by Law 49/1960, of July 21, on Horizontal Property (hereinafter, LPH).

According to the Article 29 Working Party, a "Confidentiality Breach" occurs when there is an unauthorized or accidental disclosure of personal data, or access to it.

Within the principles of processing provided for in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR.

III

Allegations to the initiation agreement

Regarding the allegations made against the initiation agreement of this sanctioning procedure, responses are provided in the order presented by the respondent, already transcribed above:

FIRST: In it, the respondent alleged that, concerning the publication on the bulletin board, the published information only included the apartment and debt (never the owner). Therefore, it would not constitute "easily decipherable information." Additionally, it points out the difficulties they have in making meeting convocations, given that there are numerous owners and many of the email deliveries were unsuccessful.

In relation to this allegation, it should be noted that the apartment is a personal data that identifies the owner of the property, so one cannot agree with the respondent's argument that the personal data published on the bulletin board is not "easily decipherable information."

Moreover, regarding this allegation, this Agency wishes to point out several issues as follows:

C/ Jorge Juan, 6

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28001 – Madrid

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The personal data protection regulations, while generally prohibiting the publication on notice boards of lists of debtors and debts to the community, allow for such publication in specific cases, provided that the reason for such publication is expressly indicated. Firstly, in relation to the convening of a meeting of owners, in order to inform about possible limitations on the voting rights of owners who are not up to date with their payments. The other case would involve the notification of community debts when it has not been possible to carry it out in accordance with Article 9 of the LPH. This is stated in the sectoral guide on Property Management, published regarding homeowners' associations, which indicates the following:

"Generally, the publication on the community notice board of a list of owners who are not up to date with their payments is not covered by the data protection regulations. However, the LPH allows for the disclosure of the identity of debtors and their debts to the community, incorporating such data into the notice of the meeting. Exceptionally, when there is no record of the address of an owner, due to this information not being provided to the community, the notice of the homeowners' meeting may be published on the community notice board—or in another visible place designated for this purpose. In this case, the reasons for such publication must be stated, along with the published document, and a diligence must be recorded by the person performing the functions of secretary."

It has not been proven by the responding party that the publication on the community notice board was carried out after unsuccessful attempts to notify the debt, in accordance with Article 9 of the LPH. In this regard, the claim of the responding party that the treatment consisting of the publication of debts, which includes only the apartment and the debt, would not constitute "easily decipherable information" cannot be accepted. The publication of personal data on the community notice board outside the cases established in the LPH has constituted a violation of Article 5.1.f) of the GDPR due to a lack of confidentiality.

It should be noted that according to Article 4.1 of the GDPR, personal data is defined as "any information relating to an identified or identifiable natural person; an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person."

The aforementioned guide also states the following:

"The publication of the list of owners with overdue and pending payments, through individualized and periodic communication sent to each of them, is also not covered by the data protection regulations. Even in cases where there is no explicit mention of the personal identification of the debtor neighbor or neighbors, indicating only the data relating to the property, such publication..."

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This communication is also not in accordance with data protection regulations, as such data or reference is always associated with that of the property owner, which leaves no doubt that it concerns personal data, referring to identifiable natural persons."

In this regard, the responding party has sent lists of debtors via email on seven occasions, referencing the property, without these lists being part of the call for any community meeting outside the provisions established in the LPH, which constitutes a violation of the confidentiality of the personal data for which the responding party is responsible.

For all the above reasons, this allegation is dismissed.

SECOND: In this allegation, apart from generic statements such as the lack of sufficient evidence or the indeterminacy of the infringing party, it refers to the inclusion in a second notice board of announcements of a community meeting minutes from 2018. Regarding this minutes, the responding party indicates that it was not posted by them, stating that, although the notice board is locked, the minutes were placed by a person who only posted one page of the minutes from outside, which is why it is fallen; they also point out that it is a minutes from five years ago. This minutes contained the

nominative list of owners and, according to the complaint, would allow the debtors to be identifiable in the list contained in the previous notice board (which contains only apartments and debts).

Well, in this regard, it must be stated that the existence of this second notice board and the list it contains would be completely irrelevant. The fact is that, as indicated in the response to the previous allegation, the mere publication of a list indicating the apartment and the debt makes the presumably debtor owners identifiable, and should only be carried out in the cases and conditions provided for in the LPH, as previously indicated.

Regarding the alleged lack of evidence, it is understood that this statement is made because the responding party considers that the inclusion of the minutes on the second notice board would not have been carried out by the responding party itself, but by third parties. Since this fact, as stated, is irrelevant, it lacks significance.

The main facts (publication on the notice board of the initial list and sending of the emails, with the referred attached documentation) are indeed acknowledged by the responding party.

For all the above reasons, this allegation is dismissed.

IV

Principle of Integrity and Confidentiality

Article 5.1.f) "Principles relating to processing" of the GDPR states:

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13/16

"1. Personal data shall be:

(...)

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In this case, it was established that the personal data of the affected individuals, contained in the database of the responding party, were improperly exposed to third parties on several occasions: through an email dated 24/03/2023 in which the complainants and other owners were mentioned by their first and last names, labeling them as debtors, and on dates 31/03/2023, 03/04/2023, 05/04/2023, 04/07/2023, and 20/11/2023, in lists of debtors sent to all community members. Furthermore, the list of debtors was displayed on the community notice board visible to third parties outside the community on 07/03/2023. Both facts have been evidenced by the emails provided in the complaint and in the photos of the notice board submitted by the complainant.

It is not recorded in the file, nor has it been provided by the responding party, that either the publication on the notice board or the sending by email of lists of debtors was carried out in the context of a call for a community meeting. It is also not recorded that the publication on the notice board was due to the need to notify debts, as neither has this been alleged by the responding party nor has documentation of prior notification attempts been provided to substantiate it.

It is therefore concluded that the publication of personal data on the community notice board and the repeated sending by email of lists of unpaid debts constitutes a violation of the principle of confidentiality in the processing of personal data, being the responsibility of the responding party. It should be noted that:

- The personal data of debtor individuals are not published on the notice board as part of a call for a meeting of the community of property owners.
- They are also not published on the notice board as an additional procedure following an attempt to notify the alleged debts, since this circumstance has not been substantiated.
- Likewise, the emails in which the successive lists of debtors were sent did not correspond to calls for a meeting of the community of property owners.

It would also be noted that the complainant sent a burofax to the administrator on 10/04/2023, warning of the improper conduct in sending the list of debtors continuously and outside the cases covered by

the LPH.

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14/16

According to the aforementioned AEPD Guide for property administrators, the situations in which data may be published on a notice board, or sent to the owners regarding community debtors, are as follows:

“(…) The Horizontal Property Law, in its objective to ensure that communities can legitimately collect what is owed to them by the co-owners that are part of them, provides the possibility of publicizing, through the convening of the Owners' Meeting, the identity of those individuals who are not up to date with the payment of all debts owed to the community. This publicity entails the knowledge by all co-owners of the identity of the debtors, as well as the amount of their debt, without the need to obtain their consent.

In turn, the LPH establishes that among the obligations of each owner is the one consisting of communicating to the person performing the functions of secretary of the community, by any means that allows for proof of receipt, the address in Spain for the purposes of summons and notifications related to the community. In the absence of this communication, the address for summons and notifications will be considered to be the apartment or premises belonging to the community, with full legal effects for those delivered to the occupant thereof.

If an attempt to summon or notify the owner is impossible to carry out at the location provided in the previous paragraph, it will be understood to have been made by placing the corresponding communication on the community notice board, or in a visible place of general use designated for that purpose, with diligence stating the date and reasons for proceeding with this form of notification, signed by the person performing the functions of secretary of the community, with the approval of the president. The notification made in this manner will produce full legal effects within three calendar days.”

In accordance with the evidence available at this time of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the party being claimed, for violation of Article 5.1.f) of the GDPR.

V

Classification and qualification of the infringement of Article 5.1.f) of the GDPR for the purposes of prescription

The aforementioned infringement of Article 5.1.f) of the GDPR constitutes the commission of the infringements classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

15/16

total annual global turnover of the previous financial year, opting for the highest amount:

a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9; (...)

For the purposes of the statute of limitations, Article 72 “Very serious infringements” of the LOPDGDD indicates:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which entail a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

VI

Sanction for the infringement of Article 5.1.f) of the GDPR

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 5.1.f) of the GDPR, allows for the imposition of a sanction of €2,000 (two thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established, the Presidency of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on ***COMMUNITY OF OWNERS L.L.L., with NIF ***NIF.1, for an infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, a fine of €2,000.

SECOND: TO NOTIFY this resolution to ***COMMUNITY OF OWNERS L.L.L.

THIRD: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of the LPACAP, within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Data Protection Agency at the banking entity CAIXABANK, S.A.

Otherwise, collection will proceed in the executive period.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

16/16

Upon receiving the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Electronic

Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Lorenzo Cotino Hueso

President of the Spanish Data Protection Agency

C/ Jorge Juan, 6

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